

Esso Petroleum Company Act, 1957

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CHAPTER xxxviii

An Act to authorise the Esso Petroleum Company Limited to construct works and to acquire lands and for other purposes. [31st July 1957.]

WHEREAS—

(1) The Esso Petroleum Company Limited (in this Act referred to as “ the Company ”) are a company within the meaning of the Companies Act 1948 and are a company limited by shares:

(2) The Company are engaged in the transporting refining and marketing of petroleum products and in order to meet the increasing public demand for their products it is essential that further facilities should be available:

(3) The deep waters of Milford Haven enable tankers of the largest size to be accommodated at any state of the tide:

(4) The Company have accordingly acquired land in the parishes of Herbrandston and Hubberston in the rural district of Haverfordwest in the county of Pembroke and intend to establish a refinery on such land and on other land in the vicinity and it is expedient in the public interest that the Company should be empowered to construct the works authorised by this Act in the waters of Milford Haven and on the foreshore thereof for the accommodation of vessels (including such tankers as aforesaid) and for the reception from such vessels of crude oil and petroleum products for the said proposed refinery and for conveying oil and petroleum products therefrom:

(5) It is expedient that the Company be authorised to acquire lands:

(6) It is expedient that the Company be authorised to stop up roads bridle ways and footpaths across their said land:

(7) It is expedient that the other provisions contained in this Act be enacted:

(8) The objects of this Act cannot be attained without the authority of Parliament:

(9) Plans and sections showing the lines and levels of the works by this Act authorised and showing the lands which may be acquired or used compulsorily under the powers of this Act and for the purposes of this Act together with a book of reference to the said plans containing the names of the owners or reputed owners lessees or reputed lessees and of the occupiers of all such lands and describing the same have been deposited with the clerk of the county council of the administrative county of Pembroke and such plans sections and book of reference are respectively referred to in this Act as the deposited plans sections and book of reference:

May it therefore please Your Majesty that it may be enacted and be it enacted by the Queen's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

Short title.

1. This Act may be cited as the Esso Petroleum Company Act 1957.

Incorporation
of Acts.

2.—(1) The following enactments so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act are hereby incorporated with this Act (namely):—

(a) the Lands Clauses Acts except sections 127 to 132 of the Lands Clauses Consolidation Act 1845;

(b) the provisions of the Railways Clauses Consolidation Act 1845 with respect to the temporary occupation of lands near the railway during the construction thereof:

Provided that for the purposes of the incorporated provisions of the Railways Clauses Consolidation Act 1845 the works authorised by this Act shall be deemed to be the railway and the centre lines of those works as shown on the deposited plans shall be deemed to be the centre of the railway;

(c) the provisions of the Act of 1847 (except sections 6 to 13 16 to 23 25 to 27 31 to 42 44 to 49 67 79 to 82 and 84 to 96):

Provided that section 50 of the Act of 1847 shall not apply to the Company unless and until they levy and demand rates under the powers of this Act.

(2) In construing the Act of 1847—

- (a) the expression “the harbour dock or pier” shall mean the works and the water area within the limits of the pier;
- (b) the prescribed limits shall be the limits of the pier:

Provided that the jurisdiction of the pier master conferred by this Act shall only be exercised with reference to vessels at or coming to or departing from the works and vessels which shall obstruct the approaches to the works and shall not be exercised beyond the limits of the pier.

3.—(1) In this Act the following words and expressions have Interpretation.
the several meanings hereby assigned to them respectively unless there be something in the subject or context repugnant to such construction (that is to say):—

“the Act of 1847” means the Harbours Docks and Piers
Clauses Act 1847;

“the Company” means the Esso Petroleum Company
Limited;

“enactment” includes an enactment in this Act or in any
general or local Act and any order byelaw scheme or
regulation made under an Act;

“the highway authority” means in the case of a highway
maintainable at the public expense the authority in
whom that highway is vested;

“the Lands Clauses Acts” means the Lands Clauses Acts
as modified by the Acquisition of Land (Assessment of
Compensation) Act 1919 by Part V of the Town and
Country Planning Act 1947 by the Lands Tribunal Act
1949 by the Town and Country Planning Act 1954
and by this Act;

“the limits of deviation” means the limits of deviation
shown on the map referred to in the proviso to section 8
(Power to deviate) of this Act;

“the Minister” means the Minister of Transport and
Civil Aviation;

“the pier” means the works as defined in this section;

“the pier undertaking” means the undertaking of the
Company in connection with the pier as from time to
time authorised;

“the Queen’s harbour master” means the Queen’s harbour
master for the dockyard port of Pembroke;

“telegraphic line” has the same meaning as in the Telegraph
Act 1878;

“the tribunal” means the tribunal or other authority to
whom any question of disputed purchase money or
compensation under this Act is referred in pursuance of
the Acquisition of Land (Assessment of Compensation)
Act 1919 as amended by the Lands Tribunal Act 1949;

“ the Trinity House ” means the master wardens and assistants of the guild fraternity or brotherhood of the Most Glorious and Undivided Trinity and of St. Clement in the parish of Deptford Strond in the county of Kent commonly called the Corporation of Trinity House of Deptford Strond;

“ vessel ” includes a seaplane on the surface of the water;

“ the works ” means the works authorised by this Act and includes those works as extended enlarged altered replaced or relaid under section 7 (Alteration and improvement of works) of this Act and the works authorised by paragraph (a) of subsection (1) of section 6 (Subsidiary works) of this Act and “ work ” shall be construed accordingly.

(2) Any reference in this Act to any enactment shall be construed as a reference to that enactment as applied extended amended or varied by or by virtue of any subsequent enactment including this Act.

Power to
make works.

4.—(1) Subject to the provisions of this Act the Company may make and maintain in the lines and situations shown on the deposited plans and according to the levels shown on the deposited sections the works hereinafter described together with all necessary and proper works and conveniences connected therewith or incidental thereto (that is to say):—

Work No. 1 A jetty partly of solid and partly of open construction commencing at a point fronting the foreshore at Little Wick in the parish of Herbrandston in the rural district of Haverfordwest in the county of Pembroke extending into the waters of Milford Haven in a southerly direction for a distance of approximately three thousand one hundred and fifty feet and terminating (with one or more connections) at Work No. 2 authorised by this Act;

Work No. 2 A jetty head partly of solid but mainly of open construction for berthing vessels commencing at a point in the waters of Milford Haven approximately three thousand eight hundred and eighty feet measured in a south-westerly direction from the commencement of Work No. 1 authorised by this Act and terminating at a point in the said waters approximately four thousand seven hundred and thirty feet measured in an easterly direction from the point of commencement.

(2) The Company may enclose and reclaim from the foreshore and bed of the sea and may hold and use as part of the pier undertaking so much of the foreshore and bed of the sea within the limits of deviation as is situate within a distance of two hundred and fifty yards from Work No. 1 and is required for or in connection with that work.

5. Subject to the provisions of this Act if the works authorised by the last foregoing section are not completed within ten years from the first day of October nineteen hundred and fifty-seven then on the expiration of that period the powers by this Act granted to the Company for making and completing the said works or otherwise in relation thereto shall cease except as to so much thereof as is then completed: Period for completion of works.

Provided that nothing in this section shall prejudice or affect the powers of the Company to maintain use extend enlarge alter or replace the works at any time and from time to time as occasion may require.

6.—(1) Subject to the provisions of this Act the Company for the purposes of or in connection with the works authorised by section 4 (Power to make works) of this Act may within the limits of deviation in addition to such works— Subsidiary works.

(a) construct or place and maintain and use all such cuts channels docks entrances sea walls gates weirs dams basins reservoirs ponds trenches pounds slipways lay-byes sluices culverts syphons by-passes arches bridges (fixed or opening) ferries sewers drains mains pipes cables tanks valves and valve chambers embankments towing-paths banks walls jetties berthing heads strong points landing places mooring dolphins moorings buoys beacons lights signals telecommunication installations groynes quays wharves warehouses sheds buildings engines pumps machinery lifts cranes drops winches capstans gantries conveyors staithes tips railways tramways junctions sidings turntables roads roadways walkways approaches pipeways works and appliances as may be necessary or convenient for or in connection with or subsidiary to the said works;

(b) temporarily or permanently use strengthen widen improve alter or otherwise interfere with drains sewers submarine cables telegraphic telephonic electric gas water and other pipes lines wires works and apparatus (all of which are hereafter in this section referred to as “apparatus”) providing where possible a proper substitute before interrupting the passage of sewage electricity gas or water in or through any apparatus.

(2) Any apparatus rendered unnecessary by the substitution of other apparatus therefor shall vest in the Company and the substituted apparatus shall be under the same jurisdiction care management and direction as the existing apparatus for which it may be so substituted.

(3) In the exercise of the powers conferred by this section the Company shall cause as little detriment and inconvenience as

the circumstances permit to any person and shall make reasonable compensation for any damage caused to any person by the exercise of such powers.

(4) (a) Not less than twenty-eight days before executing any works under paragraph (b) of subsection (1) of this section affecting any drains sewers or pipes belonging to or repairable by the local authority or any apparatus of the board the Company shall submit to the appropriate authority sufficient plans sections and particulars of the proposed works for their reasonable approval.

(b) The Company shall execute such works in accordance with such plans sections and particulars as may be submitted to and approved by the appropriate authority or if such approval be refused as may be settled by arbitration and all such works shall be executed to the reasonable satisfaction of the appropriate authority and the Company shall at all times afford to the representative of the appropriate authority access for the purpose of inspecting such works.

(c) Any dispute or difference apart from disputed compensation which may arise between the appropriate authority and the Company under this subsection shall be settled by arbitration.

(d) In this subsection "the appropriate authority" means in relation to any drain or sewer or pipe the local authority to whom it belongs or by whom it is repairable and in relation to any apparatus of the board the board.

(5) Notwithstanding anything in this section contained the Company shall not—

(a) use any telegraphic line belonging to or used by the Postmaster-General;

(b) alter any such line except in accordance with and subject to the provisions of paragraphs (1) to (8) of section 7 of the Telegraph Act 1878.

(6) Any electrical works or equipment constructed erected laid down maintained worked or used in pursuance of the powers conferred by this section shall be so constructed erected or laid down and so maintained worked and used as to prevent interference with any telegraphic line belonging to or used by the Postmaster-General or with telegraphic communication by means of any such line or with any apparatus of the board or with any purpose for which such apparatus is used.

(7) Any telegraphic and telephonic apparatus used under the provisions of this section shall be so used as not to contravene the exclusive privilege conferred upon the Postmaster-General by the Telegraph Act 1869.

(8) In subsection (5) of this section the expression "alter" has the same meaning as in the Telegraph Act 1878.

(9) In this section "the board" means the South Wales Electricity Board and the expression "apparatus of the board" means apparatus as defined in section 46 (For protection of statutory undertakers) of this Act.

7.—(1) Subject to the provisions of this Act the Company may from time to time maintain renew enlarge and alter temporarily or permanently the works authorised by section 4 (Power to make works) of this Act or any part thereof: Alteration and improvement of works.

Provided that nothing in this section shall authorise the Company to deviate beyond the limits of deviation.

(2) The provisions of subsection (3) of section 6 (Subsidiary works) of this Act shall apply in relation to any works of maintenance renewal enlargement or alteration carried out under this section as they apply in relation to works carried out under the powers of the said section 6.

8. The Company may in constructing the works authorised by section 4 (Power to make works) of this Act deviate laterally from the lines thereof shown on the deposited plans to any extent not exceeding the limits of deviation and may deviate vertically from the levels of those works shown on the deposited sections to any extent upwards or downwards: Power to deviate.

Provided that notwithstanding anything shown on the deposited plans there shall be excluded from the area within the limits of deviation shown on those plans so much thereof as lies to the east of a straight line drawn in a south-south-westerly direction from the point at which the easterly limit of deviation shown on the said plans joins high-water mark of ordinary spring tides to a point on the southerly limit of deviation shown on the said plans one thousand six hundred feet or thereabouts from the most easterly point of the said southerly limit and the said limits shall be amended accordingly. The said limits of deviation as so amended are shown on the map signed in triplicate by the Right Honourable the Earl of Drogheda the Chairman of the Committee of the House of Lords to which the Bill for this Act was referred one copy of which map has been deposited in the office of the Clerk of the Parliaments House of Lords one in the Private Bill Office of the House of Commons and one at the registered office of the Company.

9. So much of the works as is outside the area of the petty sessional division of Milford Haven in the county of Pembroke or the rural district of Haverfordwest shall be deemed to be within the said area or the said rural district (as the case may be). Petty sessional division and rural district.

10.—(1) Subject to the provisions of this Act any work shall be constructed so far as the same shall be on under or over tidal waters or tidal lands below high-water mark of ordinary spring tides only in accordance with plans and sections approved by the Minister and subject to such conditions and restrictions as the Minister may prescribe before such work is begun. Works below high-water mark to be subject to approval of Minister.

(2) Any alteration or extension of any such work shall be subject to the like approval.

(3) If any such work be commenced or completed contrary to the provisions of this section the Minister may abate and remove the same and restore the site thereof to its former condition at the cost of the Company and the amount of such cost shall be a debt due from the Company to the Crown and shall be recoverable either as a debt due to the Crown or where the amount does not exceed twenty pounds by the Minister summarily as a civil debt.

Lights on
works during
construction.

11.—(1) The Company shall at or near such part of any work as shall be on under or over tidal waters or tidal lands below high-water mark of ordinary spring tides during the whole time of the construction alteration or extension of the same exhibit and keep burning every night from sunset to sunrise such lights (if any) and take such other steps for the prevention of danger to navigation as the Minister shall from time to time require or approve.

(2) If the Company fail to comply in any respect with the provisions of this section they shall be liable on summary conviction to a penalty not exceeding twenty pounds and in the case of a continuing offence to an additional penalty not exceeding two pounds for every day on which after conviction thereof they so fail.

Permanent
lights on
works.

12.—(1) After the completion of the works the Company shall at the outer extremity of those works on under or over tidal waters or tidal lands below high-water mark of ordinary spring tides exhibit and keep burning every night from sunset to sunrise such lights (if any) and take such other steps for the prevention of danger to navigation as the Trinity House shall from time to time direct.

(2) If the Company fail to comply in any respect with the provisions of this section they shall be liable on summary conviction to a penalty not exceeding twenty pounds and in the case of a continuing offence to an additional penalty not exceeding two pounds for every day on which after conviction thereof they so fail.

Provision
against danger
to navigation.

13.—(1) In case of injury to or destruction or decay of the works or any part thereof so far as the same shall be constructed on under or over tidal waters or tidal lands below high-water mark of ordinary spring tides the Company shall lay down such buoys exhibit such lights or take such other means for preventing so far as may be danger to navigation as shall from time to time be directed by the Trinity House and shall apply to the Trinity House for directions as to the means to be taken.

(2) If the Company fail to comply in any respect with the provisions of this section they shall be liable on summary conviction to a penalty not exceeding ten pounds and in the case of a continuing offence to an additional penalty not exceeding one pound for every day during which they omit after conviction thereof so to apply or refuse or neglect to obey any direction given in reference to the means to be taken.

14.—(1) Where any work situate wholly or partially on under or over tidal waters or tidal lands below high-water mark of ordinary spring tides is abandoned or suffered to fall into decay the Minister may by notice in writing either require the Company at their own expense to repair and restore such part of such work as is situate below high-water mark of ordinary spring tides or any portion thereof or require them to abate or remove the same and restore the site thereof to its former condition to such an extent and within such limits as the Minister may think proper.

Abatement of
work
abandoned or
decayed.

(2) Where any part of any such work which has been abandoned or suffered to fall into decay is situate above the high-water mark of ordinary spring tides and is in such condition as to interfere or to cause reasonable apprehension that the same may interfere with the right of navigation or other public rights over the foreshore the Minister may include any such part of such work or any portion thereof in any notice under this section.

(3) If during the period of thirty days from the date when the notice is served upon the Company they have failed to comply with such notice the Minister may execute the works required to be done by the notice at the expense of the Company and the amount of such expense shall be a debt due from the Company to the Crown and shall be recoverable either as a debt due to the Crown or where the amount does not exceed twenty pounds by the Minister summarily as a civil debt.

15. If at any time the Minister deems it expedient to order a survey and examination of any work which shall be on under or over tidal waters or tidal lands below high-water mark of ordinary spring tides or of the site upon which it is proposed to construct any such work the Company shall defray the expense of the survey and examination and the amount thereof shall be a debt due from the Company to the Crown and shall be recoverable either as a debt due to the Crown or where the amount does not exceed twenty pounds by the Minister summarily as a civil debt.

Survey of
works by
Minister.

16.—(1) Subject to the provisions of this Act the Company may from time to time deepen dredge scour and improve the bed and foreshore of the sea and blast any rock within the limits of deviation or any part or parts thereof and the channels and approaches thereto and any chalk gravel rock or other materials taken up or collected by means of such deepening dredging

Power to
dredge.

scouring or blasting shall be the property of the Company and they may use sell or otherwise dispose of or remove or deposit the same as they think fit:

Provided that no such materials shall be laid down or deposited in any place below high-water mark of ordinary spring tides except after consultation with the local planning authority and the Nature Conservancy and in such a position and under such restrictions and regulations as may be fixed by the Minister.

(2) The powers of the Company under this section of deepening dredging scouring and improving the bed and foreshore of the sea and blasting rock shall not be exercisable without the approval of the Queen's harbour master.

(3) (a) In the exercise of the powers conferred by this section the Company may remove or resite submarine cables in or across the bed or foreshore of the sea doing as little damage as may be and making good all damage done.

(b) Any material dredged up or removed shall not be laid down or deposited in such a place or manner as to cover any such submarine cable or in any way obstruct or impede any work of or connected with the inspection or repair of such a cable.

Company
may provide
dredgers tugs
etc.

17.—(1) The Company may from time to time build purchase contract for or hire and may maintain and use tugs hoppers barges or other powered craft—

(a) as may be necessary or expedient for or in relation to any of the purposes mentioned in section 16 (Power to dredge) of this Act; and

(b) for the use and accommodation of vessels within the limits of the pier and for this purpose they may let the same.

(2) In addition to the purposes referred to in paragraph (a) of subsection (1) of this section the Company may purchase hire provide and may maintain and use all necessary dredging and other machines engines craft machinery and appliances as may be necessary or expedient.

(3) Any electrical power used pursuant to this section shall be so used and any electrical works or apparatus purchased hired provided maintained or used pursuant to this section shall be so constructed laid or erected and so maintained and used as to prevent interference with any telegraphic line belonging to or used by the Postmaster-General or with telegraphic communication by means of any such line.

Power to
sell pier
undertaking.

18.—(1) At any time after the works have been completed the Company may (if authorised so to do by their memorandum and articles of association and subject to the powers and provisions thereof) with the previous consent in writing of and upon such terms conditions and restrictions as may be approved by the

Minister sell the pier undertaking and the purchaser to the extent authorised by his conveyance shall have and may exercise all or any of the powers conferred upon the Company by this Act or which the Company have or might exercise under this Act and shall be subject to all the liabilities and obligations to which the Company are subject and shall perform all the duties of the Company under this Act.

(2) The Company shall within one month after the date of any conveyance made under this section deposit a certified copy thereof at the Ministry of Transport and Civil Aviation and shall upon failure to do so be liable to a penalty not exceeding twenty pounds.

19.—(1) The Company may with the previous consent in writing of and upon such terms conditions and restrictions and for such period as may be approved by the Minister lease to any company corporation or person—

(a) the pier undertaking; or

(b) the right to collect and retain the authorised rates.

(2) As from the commencement of any lease made under the last preceding subsection the lessee during the continuance of and to the extent provided in his lease shall have and may exercise all or any of the powers conferred upon the Company by this Act which the Company have or might exercise under this Act and shall be subject to all the liabilities and obligations to which the Company are subject and shall perform all the duties of the Company under this Act.

(3) No lease made under subsection (1) of this section shall be assignable without the previous consent in writing of the Minister and the provisions of this Act with respect to such lease or to the lessee shall apply to any such assignment or to the assignee respectively.

(4) The Company shall within one month after the date of any lease made under this section deposit a certified copy thereof at the Ministry of Transport and Civil Aviation and shall upon failure to do so be liable to a penalty not exceeding twenty pounds.

(5) No lease made under this section shall be made in consideration or part consideration of any fine premium or other capital sum.

(6) Nothing in this section shall exempt the Company from their obligation to keep and render accounts and as from the date of any lease made under this section all the provisions of the Acts incorporated with this Act and of this Act as to the keeping delivery and audit of accounts shall apply to and be binding upon as well the lessee as the Company and all moneys received by the Company under or in respect of any such lease shall be deemed to be moneys levied by virtue of and income received under this Act.

(7) Notwithstanding that under this section the power to levy any rates for which statutory maxima may be fixed by an order made under section 32 (Power to levy rates) of this Act is transferred by the Company to some other person the rates in respect of which the power to levy is so transferred shall for the purposes of section 6 of the Transport Charges &c. (Miscellaneous Provisions) Act 1954 be deemed to be charges (within the meaning of the said Act of 1954) which the Company are for the time being authorised to demand and take in pursuance of this Act and in connection with any application for the revision of such rates the provisions of the said section 6 shall apply as if the said power to levy had not been so transferred.

Power to
acquire lands.

20.—(1) Subject to the provisions of this Act the Company may enter upon take and use such of the lands delineated on the deposited plans and described in the deposited book of reference as may be required for the purpose of the works and for the purpose of establishing the refinery mentioned in the preamble to this Act and for purposes ancillary thereto or connected therewith.

(2) The powers of the Company for the compulsory purchase of land under this section shall cease after the expiration of three years from the first day of October nineteen hundred and fifty-seven.

Determination
of
compensation.

21. Any question of disputed compensation payable under the provisions of this Act shall be determined under and in accordance with the Lands Clauses Acts.

Correction
of errors in
deposited
plans and
book of
reference.

22.—(1) If any omission misstatement or wrong description of any land or of the owner lessee or occupier of any land is found to have been made on the deposited plans or in the deposited book of reference the Company after giving ten days' notice to the owner lessee and occupier of the land in question may apply to two justices having jurisdiction in the county of Pembroke for the correction thereof.

(2) If on any such application it appears to the justices that the omission misstatement or wrong description arose from mistake the justices shall certify the fact accordingly and shall in their certificate state the particulars of the omission or in what respect any matter is misstated or wrongly described.

(3) Any such certificate shall be deposited with the clerk of the county council of the administrative county of Pembroke and a copy thereof shall be deposited with every clerk of a local authority and chairman of a parish council or parish meeting with whom a copy of the deposited plans (or so much thereof as includes the land to which the certificate relates) has been deposited in accordance with the standing orders of the Houses of Parliament or who has the custody of any copy so deposited and

thereupon the deposited plans and the deposited book of reference shall be deemed to be corrected according to the certificate and it shall be lawful for the Company to take the land and execute the works in accordance with the certificate.

(4) Any certificate or copy deposited under this section with any person shall be kept by him with the other documents to which it relates.

23. At any time after serving a notice to treat in respect of any land that may be acquired compulsorily under this Act but not less than one month after giving the owner and occupier of the land notice of their intention to exercise the powers of this section the Company may enter on and take possession of the land or such part thereof as is specified in the last-mentioned notice without previous consent and without compliance with sections 84 to 90 of the Lands Clauses Consolidation Act 1845: Power to expedite entry.

Provided that without prejudice to the provisions of section 21 (Determination of compensation) of this Act the Company shall pay the like compensation for land of which possession is taken under this section and the like interest on the compensation awarded as would have been payable if the provisions of those sections had been complied with.

24. Any person acting on behalf of the Company and duly authorised by the secretary of the Company may at all reasonable times enter on any land that may be acquired compulsorily under this Act for the purpose of surveying or valuing the land: Power to enter for survey or valuation.

Provided that no land shall be entered under this section unless the Company not less than twenty-four hours before the first entry and not less than twelve hours before any subsequent entry have given notice in writing to the owner and occupier of the land in manner provided by section 285 of the Public Health Act 1936.

25. In determining any question of disputed compensation or purchase money in respect of land acquired under this Act the tribunal shall not take into account— Disregard of recent improvements and interests.

(a) any improvement or alteration made or building erected after the twenty-second day of February nineteen hundred and fifty-seven; or

(b) any interest in the land created after the said date;

which in the opinion of the tribunal was not reasonably necessary and was made erected created or obtained with a view to obtaining or increasing the compensation or purchase money.

26.—(1) All private rights of way over any land that may be acquired compulsorily under this Act shall as from the acquisition of the land whether compulsorily or by agreement be extinguished. Extinction of rights of way.

(2) Any person who suffers loss by the extinguishment of any right under this section shall be entitled to be paid compensation by the Company.

Grant of
easements by
persons
under
disability.

27.—(1) Any person empowered by the Lands Clauses Acts to sell and convey or release lands may if he thinks fit subject to the provisions of those Acts grant to the Company any easement or right required for the purposes of this Act in or over or affecting any such lands (not being an easement or right of water in which some person other than the grantor has an interest).

(2) The provisions of the said Acts with respect to lands and rentcharges so far as they are applicable shall extend and apply to any such grant and to any such easement or right as aforesaid.

Stopping up
of roads
footpaths etc.

28.—(1) The Company may stop up and discontinue so much of the roads bridleways and footpaths in the parishes of Herbrandston and Hubberston in the rural district of Haverfordwest as are shown on the deposited plans as intended to be stopped up and any other footpaths over or across the lands of the Company or the lands to be acquired shown on the deposited plans and thereupon all rights of way over the said roads bridleways and footpaths or portions thereof shall be extinguished and the Company may appropriate and use the sites thereof:

Provided that the Company shall not under the powers of this section stop up any part of such roads bridleways or footpaths unless—

- (a) such part is bounded on both sides by lands belonging to the Company; or
- (b) the Company obtain the consent of the owners lessees and occupiers of the houses and lands on both sides thereof.

(2) Any person who suffers loss by the extinguishment of any private right under this section shall be entitled to be paid compensation by the Company.

Limits
of pier.

29. The limits within which the Company shall exercise jurisdiction as a pier authority and within which the powers of the pier master may be exercised shall comprise Work No. 1 and Work No. 2 authorised by this Act and—

- (a) the water area within a distance of one hundred yards from the structure of the said Work No. 2; and
- (b) the water area lying directly between the area described in paragraph (a) of this section and high-water mark of ordinary spring tides;

which limits are in this Act termed the limits of the pier.

30. Section 52 of the Act of 1847 in its application to the Company and the pier master shall extend to empower the pier master to give directions prohibiting the mooring of vessels within the limits of the pier. Directions of pier master.

31. Section 53 of the Act of 1847 in its application to the Company and the pier master shall not be construed to require the pier master to serve a notice in writing of his directions upon the master of a vessel but such directions may be given orally or otherwise communicated to such master: Orders of pier master need not be in writing.

Provided that notice which is not in writing shall not be deemed to be sufficient unless in the opinion of the court before whom any case may be heard it was not reasonably practicable to serve a written notice on the master of the vessel.

32.—(1) The Company may if they think fit levy and demand in respect of every vessel lying alongside or using any berth or other work of the Company within the limits of the pier and in respect of all goods discharged shipped or received upon or from any berth or other work of the Company within the limits of the pier rates not exceeding those specified in an order (in this section referred to as "the order") made by the Minister in accordance with the provisions of this section. Power to levy rates.

(2) Before they begin to levy or demand rates under this section the Company shall make application to the Minister for an order prescribing the maximum rates and shall submit to the Minister a draft of the order which they desire him to make.

(3) After submitting the draft order to the Minister the Company shall furnish the Minister with such information and particulars certified in such manner as the Minister may require and shall publish in such newspapers as the Minister may require a notice stating—

(a) the general effect of the application; and

(b) that within a period of forty-two days from the date of the first publication of the notice any person having a substantial interest may object to the application by giving notice to the Minister accompanied by the grounds of his objection and sending a copy thereof to the Company.

(4) Before making the order the Minister shall if required by the Company or by any person who has objected to the application and has not withdrawn his objection and in any other case if he thinks fit cause a local inquiry to be held by such person as he may appoint for the purpose.

(5) The Minister shall make the order in the terms of the draft submitted to him or in those terms as modified in such manner as he thinks fit.

(6) In making the order the Minister shall have regard to the financial position and future prospects of the pier undertaking and the order shall prescribe such maximum rates as in the Minister's opinion shall not exceed by more than is reasonable the rates estimated to be required to be levied and demanded so as to result in the pier undertaking receiving an annual revenue neither substantially less nor substantially more than adequate to meet such expenditure on the working management and maintenance of the pier undertaking and such other costs charges and expenses of the pier undertaking as are properly chargeable to revenue including reasonable contributions to any reserve contingency or other fund and a reasonable return upon the paid up share capital of the Company.

(7) The order shall be made by statutory instrument.

(8) The order may be varied or revoked by an order made under subsection (2) of section 6 of the Transport Charges &c. (Miscellaneous Provisions) Act 1954 as if it were an order made under that section.

Power to confer and vary exemptions and compound for rates.

33. If the Company levy and demand rates under the powers of this Act they may confer vary or extinguish exemptions from and compound with any person with respect to the payment of rates authorised by this Act but so that except in the case of vessels belonging to or chartered by the Company or any of their associated companies no preference be in any case given to any person over any other person using the pier under the like circumstances and that anything done under this section shall not prejudice the other provisions of this Act.

Rates for service and accommodation not otherwise provided for.

34. The Company may (so far as the rates specified in any order made under section 32 (Power to levy rates) of this Act do not extend) levy demand and recover such reasonable rates or other consideration as they may determine for the use of any mooring posts cranes buoys works and conveniences belonging to or provided by the Company or in respect of any services rendered by them in connection with the pier undertaking:

Provided that nothing in this section shall enable the Company to levy or demand rates or other consideration except for the purposes of or in connection with the discharge shipping or receipt of petroleum petroleum products (including chemicals derived from petroleum) and materials used in the manufacture thereof.

Restriction on powers to charge rates for goods.

35. Nothing in this Act shall enable the Company or authorise the Minister to empower the Company to levy and demand rates for any goods except petroleum petroleum products (including chemicals derived from petroleum) and materials used in the manufacture thereof.

36.—(1) If the Company levy and demand rates under the powers of this Act they shall within three months after the date to which the accounts and balance sheet in respect of the pier undertaking are made up send to the Minister a copy of such accounts in such form as the Minister may prescribe and section 16 of the General Pier and Harbour Act 1861 Amendment Act shall apply to and include the Company and any and every such accounts. Annual accounts to be sent to Minister.

(2) The Company shall as from the expiration of that period be liable to a penalty not exceeding twenty pounds for every refusal or neglect to comply with the foregoing provisions of this section.

37.—(1) Whenever any vessel is sunk stranded or abandoned within the limits of the pier or in or near any approach thereto the Company may if they think fit take possession of and cause the vessel or any part thereof to be raised removed blown up or destroyed. Removal of sunk stranded or abandoned vessels.

(2) The Company may cause any vessel and the furniture and tackle and apparel thereof or any part thereof respectively which shall be raised or salvaged and also any part of the cargo goods chattels and effects which may be raised or salvaged from any such vessel to be sold in any such manner as they may think fit and out of the proceeds of sale may reimburse themselves for the expenses incurred by them under this section and also for any expenses incurred by them in marking buoying watching lighting or otherwise controlling the vessel and shall hold the surplus (if any) of the proceeds of the sale in trust for the persons entitled thereto:

Provided that the Company shall before selling any such cargo goods chattels or effects as aforesaid pay any duties of customs or excise purchase tax and surcharge in respect of sugar and molasses which may be payable to Her Majesty in respect of the cargo goods chattels or effects to be sold and they may retain the amount of the duties and purchase tax and surcharge in respect of sugar and molasses so paid out of the proceeds arising from the sale of such cargo goods chattels or effects.

(3) If the proceeds of the sale are insufficient to reimburse the Company for the aforesaid expenses and duties and purchase tax and surcharge the Company may recover the deficiency or in case of an appeal under subsection (4) of this section such sum as is awarded by the arbitrator to be payable in respect of the deficiency from the owner of any such vessel either summarily as a civil debt where the amount recoverable does not exceed twenty pounds or as a debt in any court of competent jurisdiction.

(4) If on demand being made under this section for payment of any deficiency the owner of the vessel is dissatisfied with the amount demanded he may within fourteen days after the receipt

of the demand appeal to the Minister who shall appoint an arbitrator to determine and award whether any and (if so) what sum is payable in respect of the deficiency and the award of the arbitrator appointed by the Minister that no sum is payable or as to the sum payable as the case may be shall be conclusive and binding on both parties. The costs of the appeal and the award shall be in the absolute discretion of the arbitrator and he shall award and order how those costs are to be borne and paid and any costs so awarded and ordered to be paid by either party may be recovered by the other party in the same manner as the sum payable in respect of the deficiency is recoverable under subsection (3) of this section.

(5) The Company shall (except in any case which in their opinion is a case of emergency) before raising removing blowing up or destroying any vessel under the provisions of this section give to the owner of the vessel twenty-four hours' notice of their intention so to do and if within twelve hours after the expiration of such notice the owner gives to the Company notice in writing of his intention himself to raise and remove the vessel he shall be at liberty to do so in lieu of the Company:

Provided that if the owner gives any such notice as last aforesaid—

- (a) he shall in raising or removing the vessel comply with any directions which may from time to time be given to him by or on behalf of the Company for the purpose of preventing interference with navigation; and
- (b) he shall forthwith after giving such notice commence and shall with all diligent dispatch proceed with and complete the raising or removal of the vessel;

and if such raising or removal be not completed within seven days after the giving of such notice by the owner such notice shall be null and void and the Company shall be at liberty to cause the vessel to be raised removed blown up or destroyed in accordance with the provisions of this section as if the owner had not given such notice.

(6) The Company shall (except in any case which in their opinion is a case of emergency or when required by the owner to sell) before selling any vessel or any part thereof or any part of the cargo goods chattels and effects thereof under the provisions of this section give to the owner seven days' notice of their intention so to do.

(7) Any notice given by the Company pursuant to subsection (5) or subsection (6) of this section shall be given by delivering the same to the owner or by posting a prepaid letter addressed to the owner at the place in the United Kingdom where

he carries on business or at his last known place of abode in the United Kingdom or if the owner or his place of business or abode is not known to the Company then by exhibiting such notice at the registered office of the Company for twenty-four hours in the case of a notice given under the said subsection (5) or for seven days in the case of a notice given under the said subsection (6).

(8) In this and the following section the expression—

“owner” in relation to any vessel sunk stranded or abandoned as aforesaid means the owner of that vessel at the time of the sinking stranding or abandonment thereof;

“vessel” includes a seaplane and other aircraft.

(9) The powers conferred on the Company by this section shall be in addition to and not in derogation of any other powers exercisable by them for or with respect to the removal of wrecks.

(10) Except for the purpose of removing any obstruction nothing in this section shall entitle the Company to remove any wreck (as defined in section 510 of the Merchant Shipping Act 1894) to the prejudice or in derogation of the rights with respect to such wreck of the receiver of wreck under the provisions of Part IX of the Merchant Shipping Act 1894 and if the Company shall for any such purpose as aforesaid remove any such wreck they shall (without prejudice to the rights of sale conferred upon them by the foregoing provisions of this section) hold and dispose of the same or any such surplus of the proceeds of sale thereof as is referred to in subsection (2) of this section in accordance with such directions (if any) as may be given to them by the said receiver.

(11) For the removal of doubt it is expressly provided that nothing in this section shall apply to any vessel belonging to Her Majesty or held by any person on behalf of or for the benefit of the Crown nor shall any of the powers conferred by this section be exercised if by such exercise the Crown would become liable directly or indirectly otherwise than as an insurer or reinsurer under a contract of insurance or reinsurance for any expenses incurred by the Company except where such consent is given as is provided for in section 38 (As to vessels in which the Crown have an interest) of this Act and the vessel was not such a vessel as aforesaid at the time of its sinking stranding or abandonment:

Provided that in any case which in the opinion of the Company is a case of emergency the Company may without obtaining such consent as aforesaid exercise the powers conferred by this section other than the powers conferred by subsection (2) of this section.

As to vessels
in which the
Crown have
an interest.

38.—(1) The Company shall before taking possession of raising removing blowing up or destroying any vessel sunk stranded or abandoned under the powers conferred upon them by this Act or by any other enactment give to the Admiralty and to the Minister notice in writing of their intention so to do and if within fourteen days after the receipt of such notice the Admiralty or the Minister gives to the Company—

- (a) a certificate that the vessel was sunk stranded or abandoned by a person acting on behalf of Her Majesty or otherwise by an officer or servant of the Crown acting in the course of his duty as such and that it is not in the national interest that the Company should take possession of the vessel or that the vessel should be raised removed or blown up or destroyed; or
- (b) a notice that the exercise by the Company of the rights of recovery conferred by subsection (2) of section 37 (Removal of sunk stranded or abandoned vessels) of this Act would render the Crown liable directly or indirectly otherwise than as an insurer or reinsurer under a contract of insurance or reinsurance for all or a substantial proportion of the expenses incurred by the Company;

the Company shall not without the consent in writing of the authority by whom the certificate was issued or the notice given take possession of raise remove blow up or destroy such vessel:

Provided that in any case which in their opinion is a case of emergency the Company may take possession of raise remove blow up or destroy any vessel without giving notice of their intention so to do to the Admiralty or to the Minister and in that event the Company shall not be entitled to recover from any person the expenses incurred by them in so doing if the effect of such recovery would be to render the Crown so liable.

(2) If the Company shall mark light watch buoy or control any vessel in respect of which the Admiralty or the Minister have issued a certificate or given a notice and have refused their consent under subsection (1) of this section or give warning to shipping of the presence thereof the Company shall not be entitled to recover the expenses of so doing from the owner of the vessel.

Power to
Company to
make byelaws.

39. In addition to the byelaws which may be made by the Company under section 83 of the Act of 1847 incorporated with this Act the Company may from time to time make alter and repeal such byelaws as they think fit with reference to all or any of the following purposes (that is to say):—

the management control and regulation of the pier and of goods wares merchandise and vehicles using or passing over or frequenting or resorting to the pier;

the conduct of persons using or being on the pier and the control or prohibition of smoking by such persons;

safety precautions to be observed by persons on vessels being within the limits of the pier or persons using or being on the pier.

40.—(1) All byelaws made by the Company shall be subject to the provisions contained in subsections (2) (3) (4) (5) (6) and (7) of section 250 and in sections 251 and 252 of the Local Government Act 1933 and all penalties imposed for the breach of any such byelaws shall be recoverable in manner provided by that Act for the recovery of penalties and those sections shall for the purposes of this section be construed as if the words “the Company” were inserted instead of the words “the authority” wherever they occur and as if the reference to “the clerk of the authority” included a reference to “the secretary of the Company”.

Application of Local Government Act 1933 to byelaws.

(2) The confirming authority for the purposes of the said section 250 shall be the Minister.

41. The Minister may cause to be held such inquiries as he may consider necessary in regard to the exercise of any powers or duties conferred or imposed upon him and the giving of any consent or approval or the making of any order or the confirmation of any byelaw under this order and section 290 of the Local Government Act 1933 shall apply to any such inquiry as if it were an inquiry held in pursuance of subsection (1) of that section and the Company were a local authority.

Inquiries by Minister.

42. The Company shall within the limits of the pier be a local lighthouse authority for the purposes of the Merchant Shipping Act 1894.

Local lighthouse authority.

43. Where under this Act any question or dispute is to be referred to or determined by an arbitrator or arbitration then unless other provision is made the reference shall be to a single arbitrator to be agreed upon between the parties or failing agreement appointed by the President of the Institution of Civil Engineers on the application of any party to the dispute (after notice in writing to the others of them).

Arbitration

44. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown and in particular and without prejudice to the generality of the foregoing nothing herein contained authorises the Company to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any land hereditaments subjects or rights of whatsoever description belonging to Her Majesty in right of Her Crown and under the

Crown rights.

management of the Crown Estate Commissioners without the consent in writing of those commissioners on behalf of Her Majesty first had and obtained for that purpose.

Saving rights
of Queen's
harbour
master.

45. Nothing contained in this Act or in any byelaws made thereunder shall take away alter prejudice or affect the jurisdiction or any of the rights powers authorities or privileges of the Queen's harbour master within the limits of the pier.

For
protection of
statutory
undertakers.

46. For the protection of the board the following provisions shall unless otherwise agreed in writing between the Company and the board apply and have effect:—

(1) In this section—

“adequate alternative apparatus” means alternative apparatus adequate to enable the board to fulfil their statutory functions in a manner not less efficient than previously;

“apparatus” means—

(a) in relation to the South Wales Electricity Board any electric lines or works (as respectively defined in the Electric Lighting Act 1882) belonging to that board including any works constructed for the lodging therein of apparatus; and

(b) in relation to the Wales Gas Board any apparatus belonging to that board or for the maintenance of which they are responsible;

(not being apparatus in respect of which the relations between the Company and the board are regulated by the provisions of section 26 of the Public Utilities Street Works Act 1950);

“the board” means the South Wales Electricity Board and the Wales Gas Board or either of them:

(2) Notwithstanding anything in this Act or shown on the deposited plans the Company shall not acquire otherwise than by agreement any apparatus:

(3) If the Company in the exercise of the powers of this Act acquire any interest in any lands in under over or across which any apparatus is placed they shall not seek to remove that apparatus or to extinguish any right of the board to maintain repair renew or inspect that apparatus in under over or across those lands until adequate alternative apparatus shall have been constructed and be in operation to the reasonable satisfaction of the board:

(4) If the Company for the purpose of exercising the powers of this Act reasonably require the removal of any

apparatus and give to the board written notice of such requirement or if in consequence of the exercise of the powers of this Act the board shall reasonably require to remove any apparatus the Company shall afford to the board the necessary facilities and rights for the construction of adequate alternative apparatus in on or over other land of the Company and thereafter for the maintenance repair renewal and inspection of such apparatus:

Provided that if the Company are unable to afford facilities and rights as aforesaid the board shall on receipt of a written notice to that effect from the Company forthwith use their best endeavours to obtain the necessary facilities and rights over other land:

- (5) Where in consequence of this Act any part of any road bridleway or footpath in which any apparatus is situate ceases to be part of a road bridleway or footpath the board may exercise the same rights of access to such apparatus as they enjoyed immediately before the passing of this Act but nothing in this paragraph shall prejudice or affect any right of the Company or of the board to require removal of such apparatus under this section:
- (6) The Company shall pay to the board the amount by which the costs charges and expenses reasonably incurred by the board in connection with any removal or alteration of any apparatus or the construction of any new apparatus that may be required in consequence of the exercise of the powers of this Act shall exceed the value of any apparatus removed in consequence of alternative apparatus being provided and shall also make compensation to the board for any damage caused to any apparatus in consequence of the exercise of the said powers:
- (7) Any difference which may arise between the Company and the board under this section shall be referred to and determined by arbitration.

47. This Act shall be deemed to be an enactment passed before and in force at the passing of the Town and Country Planning Act 1947 for the purposes of subsection (4) of section 13 and subsection (1) of section 118 of that Act. Saving for town and country planning.

48. The costs charges and expenses preliminary to and of and incidental to the applying for and the preparing obtaining and passing of this Act shall be paid by the Company. Costs of Act.

Table of Statutes referred to in this Act

Short title	Session and chapter
Lands Clauses Consolidation Act 1845 ...	8 & 9 Vict. c. 18.
Railways Clauses Consolidation Act 1845	8 & 9 Vict. c. 20.
Harbours Docks and Piers Clauses Act 1847	10 & 11 Vict. c. 27.
General Pier and Harbour Act 1861	25 & 26 Vict. c. 19.
Amendment Act	
Telegraph Act 1869	32 & 33 Vict. c. 73.
Telegraph Act 1878	41 & 42 Vict. c. 76.
Merchant Shipping Act 1894	57 & 58 Vict. c. 60.
Acquisition of Land (Assessment of Compensation) Act 1919	9 & 10 Geo. 5 c. 57.
Local Government Act 1933	23 & 24 Geo. 5 c. 51.
Public Health Act 1936	26 Geo. 5 & 1 Edw. 8 c. 49.
Town and Country Planning Act 1947 ...	10 & 11 Geo. 6 c. 51.
Companies Act 1948	11 & 12 Geo. 6 c. 38.
Lands Tribunal Act 1949	12 & 13 Geo. 6 c. 42.
Arbitration Act 1950	14 Geo. 6 c. 27.
Public Utilities Street Works Act 1950 ...	14 Geo. 6 c. 39.
Transport Charges &c. (Miscellaneous Provisions) Act 1954	2 & 3 Eliz. 2 c. 64.
Town and Country Planning Act 1954 ...	2 & 3 Eliz. 2 c. 72.

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